



POLICE DEPARTMENT

February 21, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202202328 (Incident Date: September 1, 2022) regarding Police Officer Luis Sotomayor, Tax No. 959262 (DADS No. 2023-28442)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202202328, pertaining to Police Officer Luis Sotomayor. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Sotomayor would be detrimental to the Police Department's disciplinary process.

The Police Commissioner has determined there is insufficient evidence to support that Police Officer Sotomayor intentionally made false statements during his CCRB interview. After viewing his own Body-Worn Camera footage, when asked if, at any time during the recording, any part of Detective Ramirez's body crossed the threshold, Police Officer Sotomayor responded in the negative. He explained that perhaps the camera angle made it appear to, but he did not see that. Furthermore, Police Officer Sotomayor clarified that his understanding was that crossing the threshold, meant completely stepping inside the apartment. Police Officer Sotomayor was consistent in his interview, stating they were never inside the apartment. Police Officer Sotomayor said he did not see any part of Detective Ramirez's body past the doorframe in the footage, nor did he observe that Detective Ramirez's foot was on the wooden flooring of the apartment's interior. It is also important to note, that Police Officer Sotomayor's interpretation of video footage is subjective, and cannot be categorized as false. There is insufficient evidence to establish he intended to provide a false, material fact directly related to the disposition of the entry allegation against Detective Ramirez. Furthermore, Police Officer Sotomayor clearly believed that stepping completely inside the apartment, was considered crossing the threshold. As a result, the Police Commissioner has

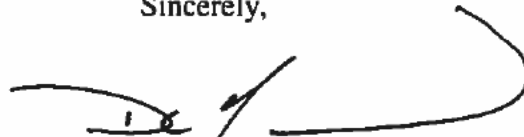
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determined, based on the totality of the circumstances, that Police Officer Sotomayor answered all questions truthfully to the CCRB, and did not make a false official statement.

In reaching this determination, the Police Commissioner noted that Police Officer Sotomayor has no other substantiated CCRB allegations in his career, and he has not received formal discipline from the Department before this incident, during his eight years with the Department. Additionally, it should be noted Police Officer Sotomayor has exceptional evaluations since 2020, serving as a Neighborhood Coordination Officer in his command. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegation of making a false statement to CCRB.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a long horizontal flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

March 1, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202202328 v. PO Luis Sotomayor, Tax #959262 (DADS #2023-28442):

Commissioner Caban:

I am writing in response to the letter from Deputy Chief, Anthony Marino, dated February 21, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to not issue Charges and Specifications and take no disciplinary action against PO Sotomayor. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

The Police Commissioner found insufficient evidence to support the conclusion that PO Sotomayor made a false statement in this matter. The CCRB disagrees with the Department’s characterization of the statement in question. PO Sotomayor’s own BWC depicted DET Ramirez entering the location. DET Ramirez’s entry into the location was the central issue under investigation. PO Sotomayor’s explanation for his original statement, that he thought a person’s entire body had to enter a location for it to be considered inside the location, is not credible for an individual who graduated from the NYC Police Academy.

While the Police Commissioner is the final arbiter of discipline, the CCRB respectfully requests that the Department serve charges and specifications against PO Sotomayor and allow his case to go through the disciplinary process alongside DET Ramirez, who was served with charges and specifications in this matter on September 12, 2023.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

March 1, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

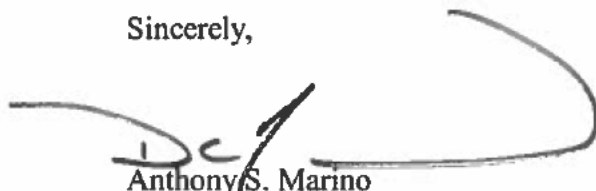
Re: CCRB Case No. 202202328 (Incident Date: September 1, 2022) regarding Police Officer Luis Sotomayor, Tax No. 959262 (DADS No. 2023-28442)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated March 1, 2024 concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Luis Sotomayor, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Sotomayor, for the reasons expressed in my February 21, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Sotomayor receive no disciplinary action in connection with this matter.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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